GEF ID: 9498
WBSE: SB-012506.05
Grant: S1-32GFL-000616

UN TO UN TRANSFER AGREEMENT

A. SUMMARY OF ACTIVITIES

Title:	Leapfrogging Tunisia's lighting market to high efficiency technologies (the "Activities")
Start/End Dates:	Activities start date: 01 June 2023 Activities end date: 31 March 2025[1]
Location:	Tunisia
Contribution Amount:	USD 1,164,816 (the "Contribution")
Contributing UN Entity:	United Nations Environment Programme, ("UNEP")
Recipient UN Entity:	United Nations Development Programme, Tunisia Country Office Tunisia ("UNDP Tunisia")
Purpose:	With reference to Annex 1A, Annex 1B, Annex 2 and Annex 2A, UNDP Tunisia will support the National Agency for Energy Conservation (ANME) to implement the components, outputs and activities (as reflected in Annex 2B and 2C) of the GEF-funded project entitled Leapfrogging Tunisia's lighting market to high efficiency technologies. The detailed description of the Activities, the work plan and the budget are attached.

Annexes:

Annex 1A	CEO Approval document
Annex 1B	GEF CEO Approval letter
Annex 2A	ANME letter requesting for UNDP support
Annex 2B	UNDP budget
Annex 2C	UNDP workplan
Annex 3	Half-Yearly Progress report template for UNDP
Annex 4	Annual PIR template for UNDP
Annex 5	Half-Yearly Expenditure report template for UNDP
Annex 6	Cash advance template for UNDP
Annex 7	Final report template for UNDP

In the event that the terms in the Annex(es) are inconsistent with those in this Agreement, then the terms in the latter shall govern and prevail.

[1] The financial closure of this agreement is 31/03/2026. This additional 12 months beyond the Activities end date is provided to allow the recipient UN entity to finalize all financial and reporting requirements as per this agreement. No new financial commitments can be created during this period.

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Expected outcomes:

1. Adoption by government of MEPS and label requirements.
2. Government actions for an increased availability and use of efficient lighting are in place.
3. Strengthened national capacity to monitor, verify, enforce and report on compliance of the products with MEPS and labelling.
4. Capacities are in place to implement a national system to collect, recycle and/or responsibly dispose of lighting products that contain hazardous materials.

UNDP Tunisia will be fully responsible for administering the Contribution in accordance with its financial regulations, rules, policies, procedures and administrative instructions, and for undertaking the Activities efficiently and effectively as per **Annex 2B** and **Annex 2C.**

B. BUDGET

The total budget for the Activities is attached hereto as **Annex 2B** ("UNDP Budget").

Summary of Activities	**Budget (US$)**			
	2023	**2024**	**2025**	**Total**
Split as follows:				
(i) Total Components amount	343 117	454 198	229 680	**1 026 996**
(ii) Total M&E amount	3 576	5 000	6 000	**14 576**
(iii) Total project management cost (PMC)	15 334	-	-	**15 334**
(iv) UNDP Direct Project Costs (3%)	10 861	13 776	7 070	**31 707**
(v) UNDP GMS fee (7%)	26 102	33 108	16 993	**76 203**
Total UNEP contribution to UNDP Tunisia *(i+ii+iii+iv+v)*	**398 991**	**506 083**	**259 743**	**1 164 816**

UNEP will not be responsible for any financial commitment or expenditure made by t UNDP Tunisia that exceeds the Budget for the Activities. UNDP Tunisia will promptly advise UNEP any time when UNDP Tunisia is aware that the Budget to carry out these Activities is insufficient to fully implement the Activities in the manner set out in the present Agreement, including its Annex(es). UNEP will have no obligation to provide UNDP Tunisia with any funds or to make any reimbursement for expenses incurred in excess of the Budget as set forth herein.

C. COSTS RECOVERY

UNDP Tunisia's support costs, determined in accordance with its cost recovery policy, will be paid from the Contribution, in accordance with the Budget.

D. REPORTING

Narrative reporting:

UNDP Tunisia will provide UNEP with a narrative report on the progress of the Activities on a regular basis, as set out below.

UNDP Half-Yearly Progress reports: Within 1 month of the end of the semester, i.e. on or before 31 January, UNDP Tunisia shall submit to UNEP a half-yearly progress reports as at 31 December using the format appended in **Annex 3**.

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UNDP Annual PIRs: Within 1 month of the end of the semester, i.e. on or before 31 July, UNDP Tunisia shall submit to UNEP, a PIR report as at 30 June (except July 2023) using the format appended **Annex 4**. The PIR report shall be accepted as the Half-yearly Progress report for the period 01 January - 30 June (except 01 January 2023 - June 2023).

UNDP Final report: Using the format appended as **Annex 7**, a draft copy of the Final Report shall be submitted by UNDP Tunisia to UNEP at the time of operational completion of the project ("Activities end date"). Within 2 months of the project operational completion ("Activities end date"), or termination of the present Agreement, UNDP Tunisia shall submit to UNEP a final copy of the afore-mentioned report. The UNDP Final Report's quality shall be assessed by the Terminal Evaluation of the project.

UNDP Tunisia is accountable to report on UNDP Tunisia's implemented activities as set in the **Annex 2C.**
All reporting for the project shall be in English or translated to English as applicable.

Financial Reporting:

UNDP Tunisia will provide UNEP with the following financial reports, prepared in accordance with the Recipient UN Entity's financial regulations, rules, policies, procedures, and administrative instructions:

UNDP Half-Yearly Expenditure reports: all financial reporting shall be in US dollars, and any exchange differences accounted for within the total GEF-approved budget. Within 1 month of the end of reporting period, i.e. on or before 31 January or 31 July (except July 2023), UNDP Tunisia shall submit to UNEP, a half-yearly expenditure reports and explanatory notes on the expenditures reported using the format appended as **Annex 5.**

UNDP Tunisia is accountable to report on UNDP Tunisia's Expenditure as set in the **Annex 2B.**
All reporting for the project shall be in English or translated to English as applicable.

E. CONTRIBUTIONS

The Contribution paid by UNEP shall match the Budget and will be paid in instalments according to the following schedule.

Schedule of payment:

The first instalment of US$ 398,991 shall be advanced to UNDP Tunisia following signature of the present Agreement.

The second and subsequent instalments will be made within 4 weeks after a financial report and other agreed-upon documentation, have been received by UNEP showing satisfactory progress of activities and adequate management and use of GEF resources. Requests for second and subsequent cash advances shall be made using the formats appended as **Annex 6**.

UNEP acknowledges that UNDP Tunisia will not pre-finance the Activities. If the Contribution, or any part of it, is not received in a timely manner, the Activities may be reduced or suspended by UNDP Tunisia with immediate effect.

The Contribution will be paid into the following account:

Bank Name (Legal Name)	Citibank
Bank Full Address	399 Park Avenue, New York, NY 10022-4617, USA
Bank Swift Code	CITIUS33

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Account Name/title	UNDP Contributions Account
Account Number	36349562
ACH transfer number	021000089

When making such transfers, UNEP will notify UNDP Tunisia of the following: (a) the amount transferred; (b) the date of the transfer; (c) that the transfer is from UNEP pursuant to this Agreement.

F. INTELLECTUAL PROPERTY RIGHTS

UNEP will be granted by UNDP Tunisia a perpetual, royalty-free, worldwide, non-exclusive and non-transferable license in the intellectual property that was developed by UNDP Tunisia as a result of the Activities.

G. CORRESPONDENCE

All correspondence regarding the implementation of this Agreement will be addressed as follows:

Julien Lheureux, Task Manager for Africa, GEF Climate Change Mitigation Unit
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yousri.helal@undp.org

H. AMENDMENTS

The present Agreement, including its Annex(es), may be modified or amended only by written agreement between the two UN Entities.

I. COMPLETION OF THE ACTIVITIES

UNDP Tunisia will notify UNEP when all Activities have been completed.

UNDP Tunisia will continue to hold any part of the Contribution that is unutilized at completion of the Activities until all commitments and liabilities incurred in the carrying out of the Activities have been satisfied and all arrangements associated with the Activities have been brought to an orderly conclusion.

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J. EXPIRY AND TERMINATION OF THIS AGREEMENT

This Agreement will expire upon satisfaction of all commitments and liabilities incurred in carrying out the Activities and the orderly conclusion of all arrangements associated with the Activities.

This Agreement may be terminated by either UN Entity at any time by written notice to the other. Termination will be effective thirty (30) days after receipt of the notice. In the event of termination under this paragraph, the UN Entities will cooperate to ensure completion of the Activities, satisfaction of all commitments and liabilities, and the orderly conclusion of all arrangements associated with the Activities.

K. REFUNDS OF UNSPENT BALANCES

Upon expiry or termination of this Agreement and following the submission of the final financial report, any unspent balance from the Contribution will be returned to UNEP, unless otherwise agreed in writing by the UN Entities.

L. INTEREST

Unless otherwise agreed by the UN Entities based on requirements of the Funding Source as applicable, any interest accrued on the Contribution shall be treated according to UNDP Tunisia's policies and procedures.

M. DATA PROTECTION

The UN Entities will ensure an appropriate protection of personal data in accordance with their respective regulations, rules, policies, and procedures with due regard to the Personal Data Protection and Privacy Principles.[2] The UN Entities acknowledge and agree that "personal data" is defined as information relating to an identified or identifiable natural person (data subject) that is processed by, or on behalf of, the respective UN Entities concerned.

N. SETTLEMENT OF DISPUTES

The UN Entities will use their best efforts to promptly settle through direct negotiations any dispute, controversy or claim arising out of or in connection with this Agreement or any breach thereof. Any such dispute, controversy or claim which is not settled within sixty (60) days from the date either UN Entity has notified the other UN Entity of the nature of the dispute, controversy or claim and of the measures which should be taken to rectify it, will be resolved through consultation between the Executive Heads of each of the UN Entities.

O. ENTRY INTO FORCE AND VALIDITY

This Agreement will enter into force upon its signature by the authorized representatives of the UN Entities and remain in force until it expires or is terminated in accordance with Section J above.

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[2] Available at: www.unsceb.org/personal-data-protection-and-privacy-principles.

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P. PRIVILEGES AND IMMUNITIES

Nothing in or relating to this Agreement shall be deemed a waiver, express or implied, of any of the privileges and immunities of the UN Entities.

IN WITNESS WHEREOF, the undersigned, being duly authorized thereto, have signed the present Agreement in duplicate.

Signed: Digitally signed by Sheila Aggarwal-Khan, Director, Industry and Economy Division Date: 2023.05.24 14:31:15 +03'00'

Date: 24/05/2023

On behalf of the United Nations Environment Programme

Ms. Sheila Aggarwal-Khan
Director Industry and Economy Division
UNEP

Signed:

Date: 08/06/2023

NATIONS UNIES TUNISIE P.N.U.D.

On behalf of the United Nations Development Programme

Celine Moyroud
UNDP Tunisia, Resident Representative

UNEP: FT

UNDP: